

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, JUNE 25, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JUNE 24, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0090526 DISCOVER BANK v. KILCOURSE, CHRISTOPHER

Plaintiff's Motion for Leave to Amend to File Plaintiff's First Amended Complaint

Plaintiff's motion for leave to file a first amended complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Plaintiffs shall file and serve the first amended complaint attached to the declaration of Zhen Ren on or before **July 6, 2026**.

2. M-CV-0092688 UMPQUA BANK v. ANDERSON, SCOTT

The motion to set aside default judgment is dropped from calendar as no moving papers were filed with the court.

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PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

3. M-CV-0093144 BIRAK, SATPAL v. HERRERA, JOSE

Application For Stay of Execution

Appearances of the parties are required at the hearing.

4. M-CV-0096170 MULLER, ANDRES v. MACRAE, WESTON

Motion to Set Aside Default and/or Default Judgment

Defendant moves to set aside the default and/or default judgment entered against him on May 26, 2026.

Code of Civil Procedure section 473, subdivision (b) allows the court to set aside a default judgment “taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted . . .” (Code Civ. Proc., § 473, subd. (b).) Here, defendant’s application was not accompanied by a copy of an answer or other responsive pleading to be filed therein.

Code of Civil Procedure section 473, subdivision (d) also provides the court may set aside any void judgment or order. However, defendant presents insufficient evidence that the default and/or default judgment are void.

Accordingly, defendant’s motion is denied.

5. M-CV-0096410 LHE WOODCREEK v. TORRANCE, DEBORAH

Defendant’s Demurrer to Complaint for Unlawful Detainer

Defendant demurs to plaintiff’s verified complaint on the grounds the complaint does not allege facts sufficient to state an unlawful detainer cause of action because the three-day notice to pay rent or quit is deficient. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (SC

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

Manufactured Homes, Inc. v. Liebert (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.) A pleading is “uncertain” if it is ambiguous and unintelligible. (Code Civ. Proc. § 430.10, subd. (f).)

An unlawful detainer based on the failure to pay rent has several elements: (1) plaintiff owns the property; (2) plaintiff rented the property to defendant; (3) pursuant to a lease/rental agreement, defendant was required to pay rent in a specified amount to plaintiff; (4) plaintiff properly gave defendant three days written notice to pay rent or quit; (5) when the three day notice was provided, the amount stated therein was due; (6) defendant did not pay the amount stated in the three day notice within three days after service of the notice; and (7) defendant is still occupying the property. (Code Civ. Proc. § 1161, subd. (2).)

Code of Civil Procedure section 1161, subdivision (2) requires the landlord to provide a written three-day notice to pay rent or quit—after the tenant continues in possession after default of rent—that includes “the amount that is due, the name, telephone number, and address of the person to whom the rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive the payment.” (Code Civ. Proc. § 1161, subd. (2).) Moreover, the notice may allow for mailing of the past-due rental payments. (*Ibid.*) The notice must additionally provide when the notice was served to provide for the commencement of the three-day deadline and that the three-day period excludes weekends and judicial holidays. (*Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433, 459.)

Here, when taking the allegations in the complaint as true, plaintiff alleges facts sufficient to state a cause of action for unlawful detainer based on the failure to pay rent. As such, the demurrer is overruled.

Defendant shall file and serve an answer or other responsive pleading 5 calendar days after service of the order after hearing. (Cal. Rules of Court, rule 3.1320, subd. (g).)

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PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

6. S-CV-0040220 MURPHY, ANNA v. SMITH, CHARLEY

Personal appearances of the parties are required at the hearing.

Defendant's Motion for Writ of Possession for Real Property Located at 6010 and 6020 McCourtney Road, Lincoln, CA

Defendant moves for the court to issue a writ of possession for real property pursuant to Code of Civil Procedure section 715.010.

Code of Civil Procedure section 715.010, subdivision (a) provides: "A judgment for possession of real property may be enforced by a writ of possession of real property issued pursuant to Section 712.010." (Code Civ. Proc., § 715.010, subd. (a).) Here, defendant does not establish the court entered a judgment for possession of real property. Nor has a review of the court record revealed such a judgment.

Accordingly, defendant's motion is denied.

Plaintiff's request for sanctions is denied.

Plaintiff's Assertion of Statutory Right of Redemption and Declared Homestead Rights

Preliminary Matters

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff argues the statutory right of redemption has not passed because it runs from one year from the date of the sale rather than three months.

Code of Civil Procedure section 720.030 provides the two-track deadline for the redemption period: "(a) Three months after the date of sale if the proceeds of the sale are sufficient to satisfy the secured indebtedness with interest and costs of action and of sale. (b) One year after the date of sale if the proceeds of the sale are not sufficient to satisfy the secured indebtedness with interest and costs of action and of sale." (Code Civ. Proc., § 720.030, subds. (a)–(b).)

Here, the sale of the property occurred on November 13, 2025. Plaintiff, in her motion, concedes the sale produced surplus funds from the amount on the writ of

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

sale. Therefore, the sale proceeds sufficiently satisfied the secured indebtedness with interest and costs of action and of sale such that the redemption period is three months from the sale of the property. In other words, the redemption period ended on February 13, 2026.

Plaintiff also argues she is entitled to the surplus funds pursuant to Code of Civil Procedure section 704.850. However, that section only applies if the homestead exemption applies. The court explicitly found the homestead exemption does apply on April 28, 2025. Nor does the attached accounting from plaintiff's federal case state the homestead exemption applies.

Accordingly, plaintiff's motion is denied in its entirety.

7. S-CV-0048518 THERAPUTIC HERBAL v. VINCENT MARKETING SVS.

Defendant Ross Vincent's Motion for Judgment on the Pleadings

Preliminary Matters

Defendant's requests for judicial notice are granted.

The court notes the Franchise Tax Board suspended plaintiff Therapeutic Herbal Company, LLC corporate status and thus it cannot prosecute or defend itself in this action. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) The court therefore declines to consider the opposition papers as they relate to plaintiff Therapeutic Herbal Company, LLC.

Ruling on Motion

Defendant moves for judgment on the pleadings as to the entirety of the first amended complaint ("FAC") pursuant to Code of Civil Procedure section 438. Defendant, as the moving party, may move for judgment on the pleadings if either (1) the court does not have jurisdiction over the subject matter in the complaint or (2) the complaint does not state facts sufficient to state a cause of action. (Code Civ. Proc. § 438, subds. (c)(1)(B)(i)–(ii).) "A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

material factual allegations in the complaint. (*Ibid.*) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Ibid.*) Here, a careful review of the FAC, while taking the factual allegations contained therein as true, reveals the FAC alleges minimally sufficient facts to allege the causes of action contained therein. Moreover, plaintiff Therapeutic Herbal Company, LLC status as a suspended corporation is not an element to any of the causes of action and is thus immaterial to determining whether the causes of action are properly pled on its behalf. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) Accordingly, defendant's motion for judgment on the pleadings is denied.

Defendant Ross Vincent's Motion to Dismiss Plaintiff Therapeutic Herbal Company LLC's First Amended Complaint

Preliminary Matters

Defendant's requests for judicial notice are granted.

The court notes the Franchise Tax Board suspended plaintiff Therapeutic Herbal Company, LLC corporate status and thus it cannot prosecute or defend itself in this action. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) The court therefore declines to consider the opposition papers as they relate to plaintiff Therapeutic Herbal Company, LLC.

Ruling on Motion

Defendant moves to dismiss the first amended complaint because the Franchise Tax Board suspended plaintiff Therapeutic Herbal Company LLC corporate status. However, defendant does not provide any legal authority, and the court can discern none, that supports the relief requested. Accordingly, defendant's motion is denied.

Defendant Ross Vincent's Motion for Sanctions Pursuant to CCP Sections 128.5 and 2023.010 Against Attorneys Robert L. Warwick and James L. Arrasmith

Preliminary Matters

Defendant's requests for judicial notice are granted.

The court notes the Franchise Tax Board suspended plaintiff Therapeutic Herbal Company, LLC corporate status and thus it cannot prosecute or defend itself in this

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

action. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) The court therefore declines to consider the opposition papers as they relate to plaintiff Therapeutic Herbal Company, LLC.

Ruling on Motion

Defendant contends that plaintiff Therapeutic Herbal Company, LLC has engaged in discovery and motion practice despite the Franchise Tax Board suspending its corporate status. However, Code of Civil Procedure section 128.5 does not apply to discovery misuse. And, defendant does not identify any motion that plaintiff Therapeutic Herbal Company, LLC filed whereby defendant thereafter complied with Code of Civil Procedure section 128.5's 21-day safe harbor provision. Finally, defendant does not identify any specific misuses of the discovery process to justify Code of Civil Procedure sections 2023.010 and 2023.030 sanctions. Accordingly, defendant's motion is denied.

8. S-CV-0048670 CAL. ED. FUND v. CAL. PREPARATORY ACAD.

The motion to appoint receiver is dropped from calendar as the court granted the motion on April 24, 2026, after the hearing was advanced by ex parte order.

9. S-CV-0048766 BRANDT, MARGUERITE v. DIAMOND K ESTATES

The motion for summary judgment is dropped from calendar in light of the full dismissal with prejudiced filed with the court on April 28, 2026.

10. S-CV-0051202 KHACHADOURIAN, GILBERT v. COOK, RICHARD

Defendants Richard Noah Cook and Mary Melody Cook's Motion to Quash
Deposition Subpoena for Personal Appearance and Production of Documents and
Things Directed to Bob Eynck

Preliminary Matters

The court agrees to consider Jeffrey Ochrach's declaration filed in response to defendants' reply brief.

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.**

Ruling on Motion

Defendants move to quash a deposition subpoena for personal appearance and production of documents and things directed to Bob Eynck. (Code Civ. Proc., § 1987.1.) The court first observes the motion is moot as to the four categories of documents sought because plaintiffs withdrew those requests.

Nonetheless, defendants seek to quash the subpoena in its entirety because Bob Eynck is a privileged consultant; plaintiffs should not be allowed to question Bob Eynck about privileged materials; and the privileged documents in plaintiffs' possession should be subject to a protective order.

Defendants' motion is denied as to their first contention. Plaintiffs seek to depose Bob Eynck in his capacity as a percipient witness to the alleged flooding and drainage issues surrounding the property at issue in 2017 not in his capacity as a retained consulting expert.

Defendants' motion is also denied as to their second and third contentions. Defendants, as the moving party, bear the initial burden of showing preliminary facts to support the attorney-client and attorney work product privilege. (*Venture Law Group v. Superior Court* (2004) 118 Cal.App.4th 96, 102.) If they meet that burden then the burden shifts to plaintiffs to show the "privilege does not apply, an exception exists, or there has been an express or implied waiver. (*Ibid.*) Here, defendants meet their initial burden that the email correspondence between their former counsel of record, Bob Eynck, and defendant Richard Cook are subject to the attorney-client and attorney work product privilege. Plaintiffs thereafter meet their burden to establish defendants waived their privileges when defendant Richard Cook did not object to the privileged materials being introduced and discussed at his deposition. (Evid. Code, § 912.) Nor is a protective order proper given the privileges have been waived.

Accordingly, defendants' motion is denied in its entirety. Plaintiffs' request for sanctions are denied.

Plaintiffs Motion to Compel the Attendance and Testimony of Bob Eynck at Deposition; For a Determination that No Privilege Protects His Testimony; or for Appointment of a Discovery Referee and For Monetary Sanctions

Plaintiffs move the court to compel the attendance and testimony of Bob Eynck at deposition. (Code Civ. Proc., § 1987.1.) The court finds the deposition of Bob

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

Eynck is in his capacity as a percipient witness and thus no privileges apply to his reports and other documents related to the flooding and drainage issues surrounding the property at issue in 2017. Moreover, the email correspondences are not subject to the attorney-client and attorney work product privileges. Defendants meet their initial burden that the email correspondence between their former counsel of record, Bob Eynck, and defendant Richard Cook are subject to the attorney-client and attorney work product privilege. (*Venture Law Group v. Superior Court* (2004) 118 Cal.App.4th 96, 102.) Plaintiffs thereafter meet their burden to establish defendants waived their privileges when defendant Richard Cook did not object to the privileged materials being introduced and discussed at his deposition. (*Ibid.*; Evid. Code, § 912.)

Plaintiffs' motion is therefore granted. Bob Eynck shall appear and provide deposition testimony, without producing any documents, within seven (7) days after service of the order after hearing.

Plaintiffs' request for sanctions is denied.

11. S-CV-0052012 MENDIOLA, VENANZIO v. HYUNDAI OF ROSEVILLE

Plaintiff's Motion for an Order Approving Settlement of Claims Brought Pursuant to the Private Attorneys General Act of 2004, Awarding Attorneys' Fees, Costs, Service Payment, and Reimbursement of Settlement Administration Expenses

The unopposed motion is granted. The court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*O'Connor, supra*, 201 F.Supp.3d at p. 1120.) The court has carefully reviewed and considered the PAGA Settlement Agreement and plaintiff's moving papers filed in connection with the motion. The court has also reviewed the supplemental declaration of Justin Lo. The court determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

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PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

12. S-CV-0052568 GOLDEN STATE HOMES v. JOHNSTON, RUSSELL

Defendant Bonnie M. Turri's Motion to Expunge Plaintiff Golden State Homes, LLC's Notice of Pendency of Action (*Lis Pendens*)

Preliminary Matters

Defendant's requests for judicial notice are granted. Defendant's objections are overruled in their entirety.

Ruling on Motion

Defendant moves to expunge the lis pendens on the grounds that plaintiff cannot establish the probable validity of its real property claims and did not comply with lis pendens service requirements.

A party may "[a]t any time after notice of pendency of action has been recorded . . . apply to the court in which the action is pending to expunge the notice." (Code Civ. Proc., § 405.30.) "[T]he court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." (*Id.* at § 405.31.) "'Real property claim' means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility." (*Id.* at § 405.4.) "'Probable validity,' with respect to a real property claim, means that it is more likely than not that the claimant will obtain a judgment against the defendant on the claim." (*Id.* at § 405.3.) Plaintiff, as the claimant, has the burden of proof to establish the probable validity of their real property claims. (*Id.* at § 405.30.) The statute "requires a minitrial on the merits for making a probable validity finding." (*De Martini v. Superior Court* (2024) 98 Cal.App.5th 1269, 1280.)

Plaintiff's real property claims are the breach of contract, specific performance, and quiet title causes of action alleged against defendants.

A breach of contract claim has the following essential elements: (1) contract, (2) plaintiff's performance, (3) defendant's breach, (4) damages. (*San Mateo Union High School Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 439.)

Specific performance requires a plaintiff to show "(1) the inadequacy of his legal remedy; (2) an underlying contract that is both reasonable and supported by adequate

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

consideration; (3) the existence of a mutuality of remedies; (4) contractual terms which are sufficiently definite to enable the court to know what it is to enforce; and (5) a substantial similarity of the requested performance to that promised in the contract.” (*Real Estate Analytics, LLC v. Vallas* (2008) 160 Cal.App.4th 463, 472.)

A quiet title cause of action requires plaintiff to establish (1) “title of the plaintiff as to which a determination under this chapter is sought and the basis of the title” and (2) “[t]he adverse claims to the title of the plaintiff against which a determination is sought.” (Code Civ. Proc., § 761.020, subs. (b)–(c).)

Plaintiff’s real property claims arise from an alleged breach of plaintiff and defendant Russell Johnston’s Vacant Land Purchase Agreement and Joint Escrow Instructions agreement whereby defendant Russell Johnston unilaterally canceled the agreement and instead sold the property at a higher price to defendant Bonnie Turri.

Here, when considering the allegations—and attachments thereto—in plaintiff’s verified first amended complaint and Nathan Desai’s declaration filed in support of plaintiff’s opposition papers, plaintiff meets its burden to show the probable validity of its real property claims. Defendant Bonnie Turri notably takes issue with plaintiff not paying the purchase price for the property and signing a cancellation of escrow. These arguments are unpersuasive. First, plaintiff submits evidence it was ready, able, and willing to perform—and did perform—its obligation and that defendant Russell Johnston refused to complete the sale. Second, nowhere in the parties’ Vacant Land Purchase Agreement and Joint Escrow Instructions is a provision that automatically terminates the agreement if escrow is cancelled. On the other hand, paragraph 17, subparagraph (G) outlines the parameters for when the parties may cancel the agreement when escrow fails to close. Plaintiff presents evidence that none of the options therein were exercised.

Defendant Bonnie Turri next contends the notice of lis pendens is void and invalid because it was never mailed to her. Code of Civil Procedure section 405.22 requires the claimant “prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties to whom the real property claim is adverse and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll. . . . Service shall also be made immediately and in the same manner upon each adverse party later joined in the action.” However, “[a]ny notice of pendency of action shall be void and invalid as to any adverse party or owner of record unless the requirements of Section 405.22 are met for that party or

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

owner and a proof of service in the form and content specified in Section 1013a has been recorded with the notice of pendency of action.” (Code Civ. Proc., § 405.23.)

Here, defendant Bonnie Turri was added to the case on May 6, 2024, which is subsequent to the filing of the complaint on April 3, 2024, and recording the notice of lis pendens on April 10, 2024. The proof of service of the notice of lis pendens does not list defendant Bonnie Turri as a recipient of the notice of lis pendens. Nor does a review of the court record reflect any proof of service filed establishing defendant Bonnie Turri was served with the notice of lis pendens.

Plaintiff contends that because defendant Bonnie Turri purchased the property after the notice of lis pendens was recorded, she had constructive notice of the lis pendens and service was not required to be effectuated on her. (Code Civ. Proc., § 405.24.) However, plaintiff does not present any legal authority for the proposition that service of the lis pendens on her was not required nor can the court discern any.

Accordingly, the motion is granted. The notice of pendency of action (lis pendens) recorded on April 10, 2024, in the Official Records of Placer County, California, for APN/Parcel ID 023-303-029-000 at the address commonly known as 228 Doolittle Drive, Roseville, California 95747 is hereby expunged as void and invalid as to defendant Bonnie Turri.

Defendant Bonnie Turri’s request for attorney’s fees and costs is denied as plaintiff acted with substantial justification in opposing the motion.

Defendant Bonnie M. Turri’s Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Preliminary Matters

Defendant’s requests for judicial notice are granted. Defendant’s objections are overruled in their entirety.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff’s first amended complaint (“FAC”). A motion for summary judgment may be granted if “all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds “in all procedural respects as a motion for summary judgment.” (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*)

Plaintiff’s first amended complaint alleges a lone cause of action for quiet title against defendant. A quiet title cause of action requires plaintiff to establish (1) “title of the plaintiff as to which a determination under this chapter is sought and the basis of the title” and (2) “[t]he adverse claims to the title of the plaintiff against which a determination is sought.” (Code Civ. Proc., § 761.020, subds. (b)–(c).) Moreover, “a lis pendens must be filed in a quiet title action.” (*Carr v. Rosien* (2015) 238 Cal.App.4th 845, 851; Code Civ. Proc., § 761.010, subd. (b).)

Here, defendant meets her initial burden to show the quiet title cannot be established because the court expunged the notice of lis pendens as it was void and invalid to her. (UMF No. 11.) The burden therefore shifts to plaintiff to raise a triable issue of material fact.

Plaintiff does not thereafter meet its burden to raise a triable issue of material fact. Accordingly, the motion for summary adjudication is granted as to the quiet title cause of action. Therefore, because the motion for summary adjudication is granted as to the only cause of action alleged against defendant, defendant’s motion for summary judgment is granted.

13. S-CV-0053126 HUSSAIN, SYED v. RAMIREZ, ISIDRO

The order to show cause re: examination is dropped from calendar in light of the parties’ joint declaration filed with the court on June 18, 2026, that includes all information required by the court.

14. S-CV-0053210 GOODALL, BERNADETTE v. ANDRIYENKO, ANATOLIY

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

Plaintiff's Motion for Order Permitting Filing of Amendment to Complaint for Fictitious Name Pursuant to Code of Civil Procedure Sections 474, 473(a)(1), and 576

Plaintiff's motion is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 474, 576.)
Plaintiff shall file and serve the Doe amendments on or before **July 6, 2026**.

15. S-CV-0055128 VW CREDIT v. BENEDYUK, VLADIMIR

The motion to set aside default judgment is dropped from calendar as no moving papers were filed with the court.

16. S-CV-0055608 WOOD, SCOTT v. GENERAL MOTORS

Plaintiff's Motion for Attorney's Fees and Costs

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because he achieved his litigation objectives. Defendant does not challenge this. Accordingly, the court must

make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoices attached as Exhibit 5 to the declaration of Kimberli Zazzi. The court observes instances where the attorneys have insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary to the prosecution of the causes of action, instances of block billing, and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. The court determines that 29.8 hours are reasonable for Kimberli Zazzi and 3.6 hours are reasonable for LaDawna Fleckenstein.

The court also observes the invoice contains entries for “MG,” “AB,” and “MC.” However, nowhere in the notice of motion, memorandum of points and authorities, declarations by counsel, reply papers, or reply declaration does plaintiff or their counsel of record indicate who these individuals are, what their positions are, or what their billed rates are. To that end, the court determines none of the hours expended by these individuals are reasonable.

The court must next address whether the requests for \$500 per hour by Kimberli Zazzi and LaDawna Fleckenstein are reasonable. Determining the reasonable amount of attorneys’ fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, “[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement.” (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Kimberli Zazzi and LaDawna Fleckenstein are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$11,690 for attorney’s fees and \$882.77 for costs for a total amount of \$12,572.77.

17. S-CV-0055656 ALIZADEH, KOBRA v. BARRETT DAFFIN FRAPPIER

At the direction of the Presiding Judge, the motion to expunge lis pendens is dropped from calendar in light of the notice of withdrawal of motion filed June 23, 2026.

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

18. S-CV-0056130 HOWARD, JASON v. CENTRAL PARK SYSTEMS

Defendants' Motion to Stay Action

Preliminary Matters

Defendants' requests for judicial notice are granted.

Ruling on Motion

Defendants move to stay the action because there is a substantially similar controversy pending in El Dorado County.

The exclusive concurrent jurisdiction doctrine provides “when two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others. . . . [T]he rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions.” (*Shaw v. Superior Court of Contra Costa County* (2022) 78 Cal.App.5th 245, 256.) Moreover, “it is the tribunal where process is served first which has priority, regardless of which action was filed first.” (*Mungia v. Superior Court for Los Angeles County* (1964) 225 Cal.App.2d 280, 283.)

Here, El Dorado County acquired jurisdiction first in the action 26CV0275 because the proof of service filed in that action shows service was effectuated on February 9, 2026. However, service was not effectuated on defendants in the Placer County action until March 6, 2026.

Plaintiffs point the court to the proof of service filed in the Placer County action on October 7, 2025, that purports to show service on defendant “Central Park Systems, Inc. dba Fortis Telecom, a California corporation.” But, a corporation must be served to either the person designed as agent for service of process, “president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process.” (code Civ. Proc., § 416,10, subds. (a)–(b).) The proof of service filed on October 7, 2025, does not indicate service on any of these individuals. Nor does the proof of service filed on January 13, 2026, comply with this requirement or indicate the complaint and summons were included in the papers served.

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

Additionally, the judicially noticed documents reveal the two matters arise from the same transactions or events and thus the controversies are substantially similar.

Accordingly, defendants' motion is granted and this matter is stayed. An order to show cause re: stay is set for November 19, 2026, at 9:00 a.m. in Department 3.

Defendants' Demurrer and Alternative Request to Hear Previously Filed Motion to Stay Concurrently

The demurrer is dropped from calendar as moot in light of plaintiffs filing a first amended complaint on April 10, 2026.

19. S-CV-0056674 AVALOS, MIRIAM v. HYUNDAI MOTOR AMERICA

Defendant's Motion to Compel Binding Arbitration

Preliminary Matters

Both parties' requests for judicial notice are granted.

Plaintiff's objections to Ali Ameripour's declaration are sustained.

Ruling on Motion

Defendant moves to compel arbitration of plaintiff's complaint.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.) A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant contends the arbitration provisions in the Owner’s Handbook warrants compelling arbitration.

First, defendant does not meet its initial burden that an agreement to arbitrate exists with respect to the Owner’s Handbook as none was attached and there is insufficient evidence one exists.

Even assuming arguendo defendant properly presented the Owner’s Handbook that contains an arbitration agreement, there is insufficient evidence the Owner’s Handbook accompanied the vehicle or that plaintiff knew of the Owner’s Handbook. Additionally, the recent California Supreme Court case found that a manufacturer’s warranties that accompany a vehicle at the time of sale does not permit the manufacturer as a third party to enforce the arbitration provision. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1126.)

Accordingly, defendant’s motion to compel arbitration and stay action is denied.

20. S-CV-0056742 LANE, DAVID v. MITCHELL, CHRISTIE

The motion to disqualify counsel is continued to **Thursday, July 16, 2026, at 8:30 a.m. in Department 3.**

21. S-CV-0057044 IN RE THE PETITION OF TRAINER, BRIAN

Petition for Approval of Minor’s Compromise Claim (Amelia Trainer)

Petitioner, in response to the court’s previous tentative ruling, filed a supplemental declaration that confirms the settlement funds will be placed in an annuity with New York Life. However, the supplemental declaration does not attach the annuity or otherwise discuss its terms. The court cannot therefore determine whether the annuity is in the best interest of the minor. Accordingly, the petition for approval of minor’s compromise claim is continued to **August 20, 2026, at 8:30 a.m. in Department 3.** Petitioner, or their counsel of record, shall file a supplemental

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.**

declaration on or before **August 13, 2026**, that attaches the annuity terms for the court's consideration.

22. T-CV-0002762 SIVEL, KATHLEEN v. LAHONTAN GOLF CLUB

The order to show cause re: selection of arbitrator is dropped from calendar in light of the parties' joint declaration filed with the court on June 11, 2026, that includes all the information required by the court.